

BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.

CHINA UNITED LINES, LTD.,

Complainant,

v.

AMAZON.COM SERVICES LLC;
AMAZON LOGISTICS INC.; AND BEIJING
CENTURY JOYO COURIER SERVICE CO.,
LTD.,

Respondents.

Docket No.: 25-04

**DECLARATION OF BRYCE M. CULLINANE IN SUPPORT OF MOTION FOR
PROTECTIVE ORDER**

DECLARATION OF BRYCE CULLINANE

I, Bryce Cullinane, declare as follows:

1. I am an attorney duly admitted to practice before this Commission. I am a Senior Attorney with Theodora Oringher PC, attorneys of record for Claimant China United Lines, Ltd. ("CUL"). If called as a witness, I could and would competently testify to all facts within my personal knowledge except where stated upon information and belief.

2. A true and correct copy of Amazon.com Services LLC's ("Amazon") January 6, 2026 Rule 143(b)(6) Notice of Videotaped Deposition to CUL ("NOD") is attached hereto as **Exhibit A.**

3. On January 9, 2026, I met and conferred with counsel for Amazon through written correspondence regarding Amazon's NOD No. 4, which seeks: "CUL's factual basis for any contention that Amazon engaged in any act of fraud or concealment with respect to CUL." Ex. A. A true and correct copy of the January 9, 2026 Correspondence is attached hereto as **Exhibit B.**

4. In the January 9, 2026 Correspondence, I explained that Topic No. 4 is improper

because:

A corporate deposition of CUL is not an appropriate vehicle for Amazon to learn of its own wrongful acts, and CUL objects on this basis. Amazon—not CUL has the most fulsome knowledge of its fraud or deceit with respect to CUL. CUL further objects to this topic to the extent it calls for a legal conclusion and asks its corporate representative to marshal the evidence. CUL will not appoint a representative to testify on this topic.

Ex. B.

5. Amazon declined to withdraw or materially narrow Topic No. 4, stating that "[t]hat showing is a necessary element of your remaining FMC claim under Chief Judge Wirth's June 6 Order and consistent judicial precedent" Ex. B. Amazon fails to specify what they are referring to in "Chief Judge Wirth's June 6 Order" or identify what is "consistent judicial precedent."

6. Importantly, *Amazon admits that it expects the corporate designee to marshal the evidence*, which is improper and grounds alone for a protective order: "[a] corporate deposition requires the witness to prepare as to evidence within the corporation's knowledge that might not be in the witnesses' own knowledge, which is our understanding of what you may mean by 'marshal[ing] the evidence.'" Ex. B.

7. The parties are unable to resolve this dispute without the FMC's intervention.

I declare under penalty of perjury of the laws of the United States of America that the foregoing is true and correct.

Executed on this 11th day of January, 2026, at Costa Mesa, California.



Bryce Cullinane

CERTIFICATE OF SERVICE

I, David P. Collins, hereby certify that on this 11th day of January, 2026, a copy of the foregoing **Declaration of Bryce Cullinane in Support of Motion for Protective Order** was served via email, on the following:

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